MASTER SERVICES AGREEMENT

CCG-MSA-2024-0417

THIS MASTER SERVICES AGREEMENT (this "Agreement") is made and entered into as of May 20, 2024 (the "Effective Date") by and between NORTHBRIDGE INDUSTRIES, INC., a Delaware corporation having its principal place of business at 1820 Chandler Works Parkway, Akron, Ohio 44306 ("Client"), and CALDERA CONSULTING GROUP, LLC, a Delaware limited liability company having its principal place of business at 233 West Kinzie Street, Suite 1900, Chicago, Illinois 60654 ("Consultant"). Client and Consultant are each a "Party" and together the "Parties."

WHEREAS, Client desires to engage Consultant to provide implementation, configuration, data conversion, testing, training and related professional services in connection with Client's deployment of Aperion Cloud ERP;

WHEREAS, Consultant represents that it possesses the experience, personnel and capability necessary to perform such services in a professional and workmanlike manner;

WHEREAS, the Parties intend that specific services be described in one or more Statements of Work executed under and governed by this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE 1 — DEFINITIONS AND STRUCTURE

1.1 Statements of Work.

Consultant shall perform the services described in each statement of work executed by the Parties and referencing this Agreement (each, a "Statement of Work" or "SOW"). Each Statement of Work is incorporated into and governed by this Agreement. In the event of conflict between this Agreement and any Statement of Work, this Agreement controls except where the Statement of Work expressly states that it supersedes an identified provision of this Agreement.

1.4 Deliverables.

"Deliverable" means any work product identified as such in a Statement of Work, including documentation, configuration, software modifications, data conversion routines, test results and reports.

ARTICLE 2 — FEES, INVOICING AND PAYMENT

2.1 Fees.

Client shall pay the fees set out in each Statement of Work. Fees are exclusive of value added, sales, use and similar taxes, which shall be added where properly chargeable and separately identified on each invoice.

2.2 Invoicing.

Consultant shall invoice monthly in arrears for time-and-materials services and upon achievement of the

relevant milestone for fixed-fee services. Each invoice shall identify the Statement of Work, the period covered, the milestone or resource detail relied upon, and Client's purchase order number.

2.3 Payment Terms.

Undisputed invoices are payable within thirty (30) days of receipt. Client shall notify Consultant in writing of any disputed amount within twenty (20) days of receipt of the relevant invoice, specifying the basis of the dispute, and shall pay the undisputed balance in accordance with this Section.

2.4 Late Payment.

Amounts properly due and unpaid shall bear interest at one and one-half percent (1.5%) per month, or the maximum rate permitted by applicable law if lower, from the due date until paid.

2.5 Set-Off.

Client may set off against any amount otherwise payable under this Agreement any amount properly due to Client from Consultant, provided Client gives written notice of the set-off and its basis.

2.6 Expenses.

Client shall reimburse reasonable and properly documented travel and subsistence expenses incurred in performing the Services, at cost and without mark-up, in accordance with Client's travel and expense policy as provided to Consultant from time to time.

2.7 Rate Adjustment.

Rates set out in a Statement of Work are fixed for the first twelve months following its execution. Thereafter Consultant may adjust rates once in any twelve month period on not less than sixty days' written notice, by no more than the percentage increase in the Employment Cost Index for professional and business services published by the United States Bureau of Labor Statistics over the preceding twelve months.

2.8 No Payment for Unauthorised Work.

Client shall have no obligation to pay for services performed otherwise than in accordance with an executed Statement of Work or Change Order.

ARTICLE 3 — TERM

3.1 Term.

This Agreement commences on the Effective Date and continues for three (3) years unless terminated earlier in accordance with Article 12. It shall thereafter renew for successive twelve month periods unless either Party gives written notice of non-renewal not less than ninety days before the end of the then-current term.

3.2 Survival of Statements of Work.

Expiry of this Agreement shall not of itself terminate a Statement of Work then in effect, and the terms of this Agreement shall continue to govern that Statement of Work until it is completed or terminated.

ARTICLE 4 — CHANGE CONTROL

4.3 Change Orders.

No change to the scope, schedule, fees or Deliverables under any Statement of Work shall be effective unless set out in a written change order signed by an authorized representative of each Party (a "Change Order"). No course of dealing, oral statement, email, or acquiescence by any person shall operate to amend a Statement of Work. Consultant shall not be entitled to additional compensation for work performed in the absence of an executed Change Order, and Client shall not be obligated to pay for such work.

ARTICLE 5 — GOVERNANCE AND CLIENT OBLIGATIONS

5.1 Steering Committee.

The Parties shall establish a Steering Committee comprising not fewer than two representatives of each Party. The Steering Committee shall meet not less than monthly, shall receive Consultant's written status reports, and shall be the forum for escalation and for decisions reserved to it under any Statement of Work. A quorum requires the presence of at least one representative of each Party. Decisions of the Steering Committee shall be recorded in minutes circulated within five business days.

5.3 Client Personnel.

Client shall make available subject matter experts and decision-makers reasonably required by Consultant to perform the Services, at the levels and during the periods set out in the applicable Statement of Work. Consultant shall notify Client in writing where Client's failure to do so is, in Consultant's reasonable opinion, likely to affect the schedule.

ARTICLE 6 — PERSONNEL

6.2 Key Personnel.

The individuals identified as Key Personnel in a Statement of Work shall not be removed from, or have their commitment to, the engagement reduced without Client's prior written consent, except where the individual ceases to be employed by Consultant or is unable to perform by reason of illness or other cause beyond Consultant's reasonable control. Consultant shall propose a replacement of comparable qualification and experience within ten business days.

ARTICLE 7 — ACCEPTANCE

7.4 Acceptance Testing.

Client shall have fifteen (15) business days following delivery of each Deliverable (the "Acceptance Period") to evaluate it against the acceptance criteria set out in the applicable Statement of Work and to notify Consultant in writing either that the Deliverable is accepted or that it is rejected, specifying in reasonable detail each respect in which it fails to conform.

7.5 Correction and Re-submission.

Where a Deliverable is rejected, Consultant shall correct the non-conformities and re-submit the Deliverable within fifteen business days, whereupon a further Acceptance Period shall apply. Where a Deliverable is rejected on three occasions, Client may terminate the applicable Statement of Work for cause on written notice and shall be entitled to a refund of fees paid in respect of that Deliverable.

7.6 Deemed Acceptance.

A Deliverable which Client has not rejected in writing before expiry of the Acceptance Period shall be deemed accepted. Use of a Deliverable in live production operations shall constitute acceptance of that Deliverable.

ARTICLE 8 — WARRANTIES

8.1 Warranty of Professional Services.

Consultant warrants that the Services will be performed in a professional and workmanlike manner, by personnel with the requisite skill and experience, consistent with generally accepted standards for the implementation of enterprise resource planning software, and in accordance with the applicable Statement of Work.

8.2 Remedy for Breach of Warranty.

Client's sole and exclusive remedy, and Consultant's entire liability, for breach of the warranty at Section 8.1 shall be, at Consultant's option, re-performance of the non-conforming Services or refund of the fees paid for those Services, provided Client notifies Consultant in writing within ninety (90) days of performance.

8.4 Disclaimer.

EXCEPT AS EXPRESSLY SET FORTH IN THIS ARTICLE 8, CONSULTANT MAKES NO WARRANTIES OF ANY KIND, EXPRESS, IMPLIED OR STATUTORY, AND SPECIFICALLY DISCLAIMS ALL IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. CONSULTANT DOES NOT WARRANT THAT THE SOFTWARE WILL OPERATE WITHOUT INTERRUPTION OR ERROR.

ARTICLE 9 — INTELLECTUAL PROPERTY

9.1 Client Materials.

Client retains all right, title and interest in and to Client Materials, including all data, content and systems provided by Client to Consultant. Nothing in this Agreement transfers any interest in Client Materials to Consultant.

9.2 Deliverables.

Upon payment in full of the fees relating to a Deliverable, Consultant assigns to Client all right, title and interest in and to that Deliverable, excluding Consultant Background IP and Third Party Materials embedded in it.

9.3 Consultant Background IP.

Consultant retains all right, title and interest in and to methodologies, tools, templates, accelerators and know-how developed independently of this Agreement. Consultant grants Client a perpetual, irrevocable, non-exclusive, worldwide, royalty-free licence to use Consultant Background IP to the extent embedded in a Deliverable and to the extent necessary to use that Deliverable for Client's internal business purposes.

9.4 Residual Knowledge.

Nothing in this Agreement restricts Consultant from using the general knowledge, skills and experience of its personnel, provided no Client Confidential Information is disclosed.

9.5 Third Party Materials.

Consultant shall identify in the applicable Statement of Work any Third Party Materials required for a Deliverable and shall procure for Client the licences necessary to use them.

ARTICLE 10 — DATA PROTECTION AND SECURITY

10.1 Compliance.

Each Party shall comply with all applicable data protection and privacy laws in connection with Personal Data processed under this Agreement.

10.2 Processing.

Consultant shall process Personal Data only on Client's documented instructions, only to the extent necessary to perform the Services, and shall not transfer Personal Data outside the United States or Mexico without Client's prior written consent.

10.3 Security Measures.

Consultant shall implement and maintain appropriate technical and organisational measures to protect Client Materials against unauthorised access, loss, alteration or disclosure, consistent with recognised industry standards and not less protective than those described at Schedule 2.

10.4 Security Incident.

Consultant shall notify Client without undue delay and in any event within twenty-four (24) hours of becoming aware of any actual or reasonably suspected unauthorised access to or disclosure of Client Materials, and shall cooperate fully in investigation and remediation.

10.5 Sub-processors.

Consultant shall not engage any sub-processor in relation to Personal Data without Client's prior written consent, and shall remain fully liable for the acts and omissions of any approved sub-processor.

10.6 Return and Deletion.

Upon termination or on Client's written request, Consultant shall return or securely destroy all Client Materials and certify destruction in writing.

ARTICLE 11 — CONFIDENTIALITY

11.1 Definition.

"Confidential Information" means non-public information disclosed by one Party to the other, whether orally, in writing or by inspection, that is identified as confidential or that a reasonable person would understand to be confidential given its nature and the circumstances of disclosure.

11.2 Obligations.

The receiving Party shall hold Confidential Information in confidence, shall not disclose it to any third party except as permitted by this Article, and shall use it solely for the purpose of performing its obligations or exercising its rights under this Agreement. The receiving Party shall apply not less than the degree of care it applies to its own confidential information of like importance, and in no event less than a reasonable degree of care.

11.3 Permitted Disclosure.

The receiving Party may disclose Confidential Information to its employees, professional advisers and subcontractors who have a need to know for the purposes of this Agreement and who are bound by obligations of confidentiality no less protective than those set out here.

11.4 Exclusions.

The obligations in this Article do not apply to information that is or becomes public other than through breach of this Agreement, was lawfully in the receiving Party's possession without restriction before disclosure, is lawfully received from a third party without restriction, or is independently developed without use of or reference to the disclosing Party's Confidential Information.

11.5 Compelled Disclosure.

Where the receiving Party is required by law, regulation or an order of a court or regulator to disclose Confidential Information, it shall, to the extent legally permitted, give the disclosing Party prompt written

notice and reasonable cooperation so that the disclosing Party may seek a protective order, and shall disclose only that portion of the Confidential Information legally required.

11.6 Duration.

The obligations in this Article continue for five (5) years following termination or expiry of this Agreement, and indefinitely in respect of any trade secret.

ARTICLE 12 — TERM AND TERMINATION

12.2 Termination for Cause.

Either Party may terminate this Agreement or any Statement of Work for cause upon thirty (30) days' prior written notice to the other Party specifying in reasonable detail the material breach relied upon, if the breach is not cured within that period. Where a breach is not capable of cure within thirty days, the notice period shall be extended for so long as the breaching Party is diligently pursuing cure, up to a maximum of sixty days.

12.5 Consequences of Termination.

Upon termination Consultant shall promptly deliver to Client all work product, whether complete or incomplete, all configuration documentation, source code, test artefacts, data mappings and conversion routines, and shall return or certify destruction of Client Confidential Information. Client shall pay for Services properly performed to the effective date of termination, subject to Client's rights of set-off.

ARTICLE 13 — INDEMNIFICATION

13.1 Consultant Indemnity.

Consultant shall indemnify, defend and hold harmless Client and its officers, directors and employees from and against any third party claim alleging that a Deliverable, as delivered by Consultant and used in accordance with this Agreement, infringes any patent, copyright, trade secret or other intellectual property right, and shall pay all damages finally awarded and reasonable costs incurred.

13.2 Remedies on Infringement.

If a Deliverable is, or in Consultant's reasonable opinion is likely to become, the subject of a claim under Section 13.1, Consultant shall at its own expense and at its option procure for Client the right to continue using it, replace or modify it so that it becomes non-infringing while remaining materially equivalent in functionality, or, if neither is commercially reasonable, accept its return and refund the fees paid for it.

13.3 Exclusions.

Consultant has no obligation under Section 13.1 to the extent a claim arises from Client Materials, from modification of a Deliverable other than by Consultant, or from use of a Deliverable in combination with materials not supplied or approved by Consultant where the claim would have been avoided but for that

combination.

13.4 Client Indemnity.

Client shall indemnify, defend and hold harmless Consultant from and against any third party claim alleging that Client Materials infringe any intellectual property right.

13.5 Procedure.

The indemnified Party shall give prompt written notice of any claim, shall permit the indemnifying Party to control the defence and settlement, and shall provide reasonable cooperation at the indemnifying Party's expense. The indemnifying Party shall not settle any claim in a manner that imposes any non-indemnified obligation or admission on the indemnified Party without its prior written consent.

ARTICLE 14 — LIMITATION OF LIABILITY

14.1 Waiver of Consequential Damages.

NEITHER PARTY SHALL BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY OR PUNITIVE DAMAGES, OR FOR ANY LOST PROFITS, LOSS OF REVENUE, LOSS OF USE, LOSS OF DATA, BUSINESS INTERRUPTION, OR COST OF PROCUREMENT OF SUBSTITUTE SERVICES, ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY OR OTHERWISE, AND WHETHER OR NOT THAT PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

14.2 Limitation of Liability.

EXCEPT AS PROVIDED IN SECTION 14.3, THE AGGREGATE LIABILITY OF EITHER PARTY ARISING OUT OF OR RELATING TO THIS AGREEMENT AND ANY STATEMENT OF WORK, WHETHER IN CONTRACT, TORT OR OTHERWISE, SHALL NOT EXCEED THE TOTAL FEES ACTUALLY PAID BY CLIENT TO CONSULTANT UNDER THE STATEMENT OF WORK GIVING RISE TO THE CLAIM.

14.3 Exclusions from Limitation.

The limitations and exclusions in Sections 14.1 and 14.2 shall not apply to: (a) a Party's gross negligence or wilful misconduct; (b) fraud or fraudulent misrepresentation; (c) breach of Article 11 (Confidentiality); (d) a Party's indemnification obligations under Article 13; or (e) death or personal injury, or damage to tangible personal property, caused by a Party's negligence.

14.4 Allocation of Risk.

The Parties acknowledge that the limitations in this Article 14 are an essential basis of the bargain between them, that the fees set out in each Statement of Work reflect that allocation of risk, and that these provisions shall apply notwithstanding the failure of any limited remedy of its essential purpose.

ARTICLE 15 — INSURANCE

15.1 Required Coverage.

Consultant shall maintain, with insurers of recognised standing, commercial general liability insurance of not less than $2,000,000 per occurrence, professional liability (errors and omissions) insurance of not less than $10,000,000 per claim and in the aggregate, workers' compensation insurance as required by law, and cyber liability insurance of not less than $5,000,000 in the aggregate.

15.2 Evidence.

Consultant shall provide certificates of insurance upon execution of this Agreement and upon each renewal, and shall give Client not less than thirty days' written notice of cancellation or material reduction in coverage.

15.3 No Limitation.

The existence of insurance does not limit Consultant's liability under this Agreement.

ARTICLE 16 — FORCE MAJEURE

16.1 Relief.

Neither Party shall be liable for any failure or delay in performance to the extent caused by an event beyond its reasonable control, including act of God, war, terrorism, civil unrest, epidemic, governmental action, or failure of public utilities or telecommunications networks, provided the affected Party gives prompt written notice and uses commercially reasonable efforts to mitigate and resume performance.

16.2 Exclusions.

Shortage of Consultant personnel, failure of a subcontractor, and inability to pay do not constitute events of force majeure.

16.3 Prolonged Events.

If an event of force majeure continues for more than sixty consecutive days, either Party may terminate the affected Statement of Work on written notice without liability other than for services properly performed to the date of termination.

ARTICLE 17 — DISPUTE RESOLUTION

17.1 Escalation.

The Parties shall attempt in good faith to resolve any dispute by escalation, first to the Steering Committee, and if unresolved after fifteen business days, to an executive of each Party with authority to settle.

17.2 Mediation.

If a dispute is not resolved by escalation within thirty days, the Parties shall attempt to resolve it by mediation before a mediator agreed between them, each bearing its own costs and sharing the mediator's fees equally.

17.3 Litigation.

Nothing in this Article prevents either Party from seeking injunctive or other equitable relief at any time, or from commencing proceedings where necessary to preserve a claim that would otherwise be barred by a limitation period.

17.4 Continued Performance.

Except where the dispute concerns non-payment of undisputed amounts or a matter entitling a Party to suspend, each Party shall continue to perform its obligations during any dispute.

ARTICLE 18 — GENERAL

18.1 Governing Law and Venue.

This Agreement shall be governed by and construed in accordance with the laws of the State of Illinois, without regard to its conflict of laws principles. The Parties irrevocably submit to the exclusive jurisdiction of the state and federal courts located in Cook County, Illinois.

18.7 Entire Agreement.

This Agreement, together with the Statements of Work and Change Orders executed under it, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior and contemporaneous proposals, presentations, representations, understandings and agreements, whether written or oral, including Consultant's response to Client's Request for Proposal dated January 15, 2024. Each Party acknowledges that it has not relied upon any representation not expressly set out in this Agreement.

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by their duly authorized representatives as of the date first written above.

NORTHBRIDGE INDUSTRIES, INC.

PRaghunathan

By: Priya Raghunathan
Title: Chief Financial Officer
Date: 05/20/2024

CALDERA CONSULTING GROUP, LLC

GHolmqvist

By: Gunnar Holmqvist
Title: Engagement Partner
Date: 05/20/2024